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IN THE HIGH COURT OF BOMBAY AT GOA
AT PANAJI - GOA

CIVIL REVISION APPLICATION NO. OF 2016

IN THE MATTER OF:

PASCOAL TRINDADE & ANR.

... Applicants

Versus

COMUNIDADE OF BAMBOLIM & ORS.

... Respondents

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Panaji - Goa
07.10.2016

(For the Applicants)
ADV. RAUNAQ RAO
9860187957

IN THE HIGH COURT OF BOMBAY AT GOA
AT PANAJI - GOA

CIVIL REVISION APPLICATION NO. OF 2016

IN THE MATTER OF:

PASCOAL TRINDADE & ANR.

... Applicants

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... Respondents

CHRONOLOGY OF DATES & EVENTS

- 08.12.1994 A suit proceeding for Declaration & Injunction viz. Special Civil Suit No. 222 of 1994 is instituted before the Court of Civil Judge Senior Division at Panaji, Goa by the Respondent No. 1 Comunidade against Maximo Mergulhao, predecessor-in-title of the Applicants in respect of properties surveyed under Survey Nos. 93/2, 93/3 and 93/4 of Village Bambolim, Tiswadi, Goa.
- 19.11.1998 The said suit proceeding viz. Special Civil Suit No. 222 of 1994 is compromised by the parties by filing Consent Terms.
- 21.11.1998 After recording its satisfaction in respect of the consent terms dated 19.11.1998, the Court of Civil Judge Senior Division draws a Consent Decree.
- 25.04.2006 The Applicants purchase the suit properties surveyed under Survey Nos. 93/2, 93/3 and 93/4 of Village Bambolim, Tiswadi, Goa for valuable consideration.
- 2009 Writ Petition Nos. 506, 557, 577 are filed before this Hon'ble High Court by some components of the Respondent No. 1. The Respondent No. 1 is arraigned as party a Respondent therein.
- 2011 Writ Petition No. 657 is filed before this Hon'ble High Court by some components of the Respondent No. 1. The Respondent No. 1 is once again arraigned as party a Respondent therein.

- 29.03.2012 This Hon'ble High Court dismissed Writ Petition Nos. 506, 557, 577 of 2009 and Writ Petition No. 657 of 2011 by way of a common order. Liberty is given to the Petitioners to approach civil court.
- 24.08.2014 The Order dated 29.03.2012 which was assailed before the Hon'ble Supreme Court of India by way of a Special Leave Petition is dismissed and the Order of this Hon'ble High Court is confirmed.
- 04.11.2013 The Respondent No. 1 Comunidade who was all along arraigned as a party Respondent, misconstruing the liberty granted to the Petitioners in the aforementioned Writ Petitions, institutes a civil suit for declaration & injunction viz. Special Civil Suit No. 52/2013 before the Court of Civil Judge Senior Division at Panaji, Goa.
- 13.01.2014 The Applicants prefer an Application under Order VII Rule 11 (d) of the Civil Procedure Code seeking rejection of Plaint on the ground of lack of cause of action, limitation, and res-judicata amongst other grounds.
- March, 2014 Reply is filed by the Respondent No. 1.
- 30.07.2016 The Application under Order VII Rule 11 (d) is rejected.
- 18.08.2016 The Application filed by the Respondent No. 1 before the Court of Civil Judge Senior Division 'B' Court at Panaji for setting aside of the Consent Decree dated 21.11.1998 is rejected.

Hence these proceedings.

Panaji - Goa
07.10.2016

(For the Petitioner)
ADV. RAUNAQ RAO

**IN THE HIGH COURT OF BOMBAY AT GOA
AT PANAJI - GOA**

CIVIL REVISION APPLICATION NO. OF 2016

IN THE MATTER OF:

PASCOAL TRINDADE & ANR.

... Applicants

Versus

COMUNIDADE OF BAMBOLIM & ORS.

... Respondents

POINTS FOR DETERMINATION

- (i) Whether the Ld. Trial Judge failed to exercise jurisdiction vested in it whilst rejecting the Application in question?
- (ii) Whether the Ld. Trial Judge acted illegally & with material irregularity whilst exercising jurisdiction in rejecting the Application in question?
- (iii) Whether the Impugned Order deserves to be reversed?

**Panaji - Goa
07.10.2016**

**(For the Petitioner)
ADV. RAUNAQ RAO**

IN THE HIGH COURT OF BOMBAY AT GOA
PANAJI - GOA

CIVIL REVISION APPLICATION NO. OF 2016

IN THE MATTER OF ORDER DATED 30.07.2016
PASSED BY THE CIVIL JUDGE SENIOR DIVISION
'A' COURT, PANAJI, GOA IN SPECIAL CIVIL SUIT
NO. 52/2013/A.

AND

IN THE MATTER OF ORDER VII RULE 11(d) OF
THE CIVIL PROCEDURE CODE.

AND

IN THE MATTER OF SECTION 115 (1) (b) & (c) OF
THE CIVIL PROCEDURE CODE 1908

(1) Mr. Pascoal Trindade
Son of late Agostine Trindade,
75 years of age, Indian national,
Occupation Business,
Resident of Palbrika Mansion,
Opp. Our Lady of Rosary High School,
Dona Paula, Taluka Tiswadi, Goa.

(2) Mrs. Albertina Trindade
Wife of Pascoal Trindade,
73 years of age, Indian national,
Occupation Housewife,
Resident of Palbrika Mansion,
Opp. Our Lady of Rosary High School,
Dona Paula, Taluka Tiswadi, Goa.

... Applicants

Versus

1. Comunidade of Bambolim,
A body constituted and functioning
under The Code of Comunidades
1961, Represented therein by their
duly elected Attorney, having their
office at Bambolim Church
road, P.O. GMC
Complex, Bambolim, Ilhas Goa. -
403202
2. Mrs. Dionisia Dias e Mergulhao,
w/o late Maximo Mergulhao, housewife,
Model Residency, first floor, St Inez,
Panaji, Tiswadi, Goa.

A

Ass

3. M/s Raghurai Tamba,
A registered partnership firm,
Through its partner Shri Raghurai Tamba,
Major in age, having its office at
"Parimal" Altinho, Panaji-Goa.
4. Mr. Raghurai Tamba,
Major in age, businessman,
r/o "Parimal" Altinho, Panaji, Goa.
5. Mr. Pundalik Cuncolkar,
Son of late Parshuram Cuncolkar,
Major married, service and his wife,
6. Mrs. Sumati Pundalik Cuncolkar,
Major, service, Both r/o H.No. not known,
Palem, Siridao, Tiswadi, Goa.
7. Mrs. Ganga alias Shobha
Vasudev Narvekar, w/o late
Vasudev Narvekar, major,
daughter of late Parshuram
Cuncolkar, major,
housewife.
8. Ms. Mamtha Vadusev
Narvekar, Daughter of late
Vasudev Narvekar, Major,
unmarried, service, Both
r/o H.No. not known, Goa
Velha, Tiswadi - Goa.
9. Mrs. Kensar Manuel Pereira
alias Kunkollikar, Wife of
Manuel Pereira, Daughter
of late Parshuram
Cuncolkar, Major, married,
housewife,
10. Mr. Manuel Pereira, s/o
late Joaquim Pereira, major
in age, married, service,
both r/o H.No. not known,
Cacra, St. Cruz, Ilhas - Goa.
11. Mrs. Rukmini Bhikaro Gauns
Gomes, w/o late Bhikaro
Gauns alias Gomes, major,
r/o H.No. not known,
Modlowado, Siridao, Palem,
Tiswadi, Goa.

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12. Mrs. Geeta Prakash
Narvekar, w/o Prakash
Narvekar, d/o late Bhikaro
Gauns alias Gomes, major,
13. Mr. Prakash Narvekar, Major
in age, married,
Government servant,
Indian National Both r/o
H.No. not known, Taleigao,
Tiswadi-Goa.
14. Mrs. Chandrika Bhikaro
Gauns Alias Gomes alias
Lotlikar, d/o late Bhikaro
Gauns alias Gomes, major,
r/o H.No. not known,
Modlowado, Siridao, Palem,
Tiswadi, Goa.
15. Mr. Madhu Cuncolkar alias
Canconkar, s/o Laximan
Cuncolkar, major, service.
16. Mrs. Succorina Madhu
Cuncolkar Alias Canconkar,
alias Manisha Madhu
Cuncolkar alias Canconkar,
w/o Madhu cuncolkar alias
Canconkar, major,
housewife, both r/o H.No.
not known, Modlowado,
Siridao, Palem, Tiswadi,
Goa.
17. Mr. Rama Gomes alias
Lotlikar, s/o Sebastiao
Gomes, major, Service.
18. Smt. Sita Rama Gomes alias
Lotlikar, Housewife, both
r/o H.No. not known, Palem,
Siridao, Tiswadi, Goa.

... Respondents

(above all are registered addresses)

TO
THE HON'BLE CHIEF JUSTICE AND
HIS OTHER COMPANION JUDGES

AH *Ans*

THIS HUMBLE APPLICATION OF THE
APPLICANTS ABOVE-NAMED

MAY IT PLEASE YOUR LORDSHIPS:

1. The Applicants by way of this Application seeks to invoke the Supervisory Jurisdiction of this Hon'ble Court vested in this Hon'ble High Court in terms of Section 115 of the Civil Procedure Code, challenging the legality and validity of the Order dated 30.07.2016 passed by the Civil Judge Senior Division 'A' Court, Panaji, Goa in the Special Civil Suit No. 52 of 2013 dismissing the Application preferred by the Applicants under Order VII Rule 11(d) of the Civil Procedure seeking rejection of Plaint as being absolutely barred by the law of limitation.
2. The Applicants are residents of Dona Paula Goa, India, and senior citizens in age being of ripe age of 73 and 75 years respectively. The Applicants are the contesting Defendants (i.e. Defendants Nos. 1 and 2 respectively) in the Suit Proceedings viz., Special Civil Suit No. 52/2013/A.
3. The Respondent No. 1 is the Plaintiff, Comunidade of Bambolim.
4. That for the purpose of convenient disposal of the present Application, the facts surrounding the present Application can be briefly stated as under:-
5. The Applicants are the lawful owners in possession & enjoyment of the following suit properties:-

***Property surveyed under Survey No. 93/2, admeasuring
an area of 35,600 Square Meters***

And bounded as under:-

On the East	: By plot surveyed under No.93/1
On the West	: By plots surveyed under Nos.93, 106, 107/1, 2, 3, 5 & 6.
On the North	: By Bambolim village road & plot surveyed under No.107/7-11
On the South	: By plot surveyed under No.103

***Property surveyed under Survey No. 93/3, admeasuring
an area of 26,825 Square Meters***

And bounded as under:-

On the East	: By plot surveyed under No.93/1
On the West	: By the plot of GMC surveyed under Nos.102/3 and 104
On the North	: By plot surveyed under No.103



On the South : By plot surveyed under No.94

***Property surveyed under Survey No. 93/4, admeasuring
an area of 35,075 Square Meters***

And bounded as under:-

On the East : By plot surveyed under No.93/1
On the West : By plot Nos.95, 96 & 97
On the North : By plot surveyed under No.94
On the South : By village boundary of Siridao

*(All of the aforementioned properties are hereinafter referred to
as the said properties for the sake of brevity)*

6. It is submitted that the said properties originally belonged to Maria Conceicao Rodrigues of Santa Cruz. It is submitted that the same is established specifically in terms of Form III issued by the Department of Survey & Land Records in respect of the said properties, which document preceded the Form I & XIV of Record of Rights and prior to the promulgation of Land Survey in the concerned Village.
7. It is submitted that the said Maria Conceicao Rodrigues was married to Gregorio Germano Mergulhao of Santa Cruz. It is submitted that out of the wedlock Maria Conceicao Rodrigues had two sons, namely, Francisco Aleixo das Dores Mergulhao and Emanuel Joveaniano Paixao Mergulhao.
8. It is submitted that the said Maria Conceicao Rodrigues who was a widow of Gregorio Germano Mergulhao expired on 05.10.1901.
9. It is further submitted that Francisco Aleixo das Dores Mergulhao expired on 12.07.1906 as bachelor without any will or last testament.
10. It is further submitted that Emanuel Joveaniano Paixao Mergulhao expired on 11.11.1929. The said Emanuel Joveaniano Paixao Mergulhao was married to Maria Gertrudes does Pereguinos Viegas.
11. It is submitted that out of the wedlock, Emanuel Joveaniano Paixao Mergulhao and Maria Gertrudes does Pereguinos Viegas had only one male issue, their son, namely Maximo Mergulhao.
12. It is submitted that Maximo Mergulhao is the late husband of Mrs. Dionisia Mergulhao.
13. It is submitted that vide Deed of Succession dated 04.06.1998 that Maximo Mergulhao alias Maximiano Mergulhao expired on 26.03.1998 bequeathing by Will dated 14.05.1990 executed before the Civil Registrar Cum- Sub-Registrar and Notary Public Ex-officio the disposable quota of all his properties in favour of his only son Mr. Americo Mergulhao.

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14. The said Maximo Mergulhao expired on 26.03.1998 leaving behind him his wife Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao i.e the interested party as his moiety holder or half sharer and his heir his only son Mr. Americo Mergulhao married to Mrs. Celia Menezes. Thus the only and universal heir and successor.
15. It is submitted that vide Deed of Gratuitous Relinquishment of Illiquid Rights dated 13.05.1998 the said Americo Mergulhao son of Maximo Mergulhao and his wife Celia Menezes relinquished their undefined, illiquid and undivided right, title and interest which they were entitled to upon the death of their father and father-in-law Mr. Maximo Mergulhao, thus making their mother and mother-in-law Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao, the Defendant No. 3 the sole owner of the said properties which are mentioned above namely Ohor or Oros and "Bailem Fondiem" and "Bailem Fondiem" and "Saveli Gali".
16. It is submitted that the Applicants vide Three (3) Deeds of Sale purchased the said properties for valuable consideration from that the said Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao, with the Mr. Raghurai Tamba as confirming party therein, being:-
 - a. Deed of Sale dated 25th April 2006 registered in the office of the Sub-Registrar of Ilhas Goa under No.1238 at pages 369 to 387, Book I, Volume 1634 dated 03.05.2006.
 - b. Deed of Sale dated 25th April 2006 registered in the office of the Sub-Registrar of Ilhas Goa under No.1239 at pages 388 to 408, Book I, Volume 1634 dated 03.05.2006.
 - c. Deed of Sale dated 25th April 2006 registered in the office of the Sub-Registrar of Ilhas Goa under No.1240 at pages 409 to 427, Book I, Volume 1634 dated 03.05.2006.
17. It is submitted that the Applicants has since been in continuous and peaceful possession and enjoyment of the said properties.
18. It is submitted that subsequent to purchase of the said properties vide aforementioned Deeds of Sale, it was realized by the Applicant No. 1 that though he has acquired exclusive ownership of the said properties, certain names had erroneously entered in the Tenant's Column of the Form I & XIV of Record of Rights. None of the said names had at any point in time been declared as tenant/s as required under the Goa, Daman & Diu Agricultural Tenancy Act, 1964, therefore such an inclusion was clearly pursuant to an error.
19. It is submitted that therefore the Applicants, after seeking legal advice instituted a civil suit against the said persons namely Pundalik Konkolkar and 13 others viz., Regular Civil Suit No. 6/2007/C before the Court of Civil Judge, Junior Division at

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Panaji seeking declaration that the Applicants, herein is the exclusive owner in possession and enjoyment of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4 totally admeasuring about 97,500 Sq.Mtrs and for deleting erroneous entries in the tenants column in Survey Record of the said property or and for directing the Dy. Collector or any other authority necessary under the Land Revenue Code to delete the said entries.

20. The said suit was decreed vide Judgment and Order dated 25.01.2007 *inter alia* holding the Applicants as the owners of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4. admeasuring about 97500 sq. mts.
21. It is pertinent to state at this juncture that at the relevant time there was G.R. issued by the Goa Govt. stating that only Civil Courts have jurisdiction and accordingly the Applicants was advised to file aforementioned suit.
22. On 08.12.1994, the Respondent No. 1 Comunidade of Bambolim instituted a suit proceeding viz., Special Civil Suit No. 222/1994/B before the Civil Judge Senior Division at Panaji, Goa against the predecessor-in-title of the Applicants namely, Maximo Mergulhao since deceased through L.R.S. Mrs. Deonosio Dias e Mergulhao (Respondent No. 2 herein), seeking declaration that the property surveyed under No. 89/3 is part of the property named by "Oros" belonging to Comunidade.
23. That vide Consent Decree dated 19.11.1998 the said suit came to be compromised. In pursuance of the said Consent Terms, Special Civil Suit No. 222/1994/B came to be disposed-off and a Consent Decree was drawn by the Civil Judge Senior Division at Panaji, Goa on 21.11.1998.
24. In term of the Consent Terms/ Compromise Decree the Comunidade agreed to take 45 plots in Survey No. 93/2, 93/3 and 93/4 of Village Bambolim. At this juncture it may not be entirely out of context to state that had the said properties belonged to the Respondent No. 1, then one fails to understand as to why the Respondent No. 41 Comunidade would settle the *lis* accepting 45 plots in their own property.
25. It is submitted that in the year 2009, the then President of the Comunidade of Bambolim, Marvin Gonsalves, in his personal capacity filed a Writ Application before this Hon'ble High Court viz., Writ Application No. 102 of 2009 seeking inquiry in respect of the said properties.
26. This Hon'ble Court based on statement made by the Ld. Advocate General, passed an order directing the Deputy Collector and S.D.O., Panaji to hold a detail inquiry looking into the allegations of the Petitioner in the said Writ Petition.
27. It is submitted that submitted that said inquiry was registered as Case No. ILL/CNV/19/2009-881 by the Deputy Collector.

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28. It is pertinent to state here that in cross examination it was clearly admitted by the Respondent No. 1 that the boundaries of the properties belonging to the Applicants were different than those claimed by the Respondent Comunidade.
29. It is submitted that the Deputy Collector gave a finding in favour of the Applicants and rejected all the contentions and allegations of the Respondent No. 4 and its constituents vide its detailed Order dated 01.08.2011. The said Order was then placed before this Hon'ble High Court.
30. It is submitted that the accordingly Writ Application No. 102/2009 was disposed off.
31. It is further submitted that the constituents of the Respondent No. 1 once again approached this Hon'ble High Court vide Writ Petition Nos. 506 of 2009, 557 of 2009, 577 of 2009 and 657 of 2011. The Respondent No. 1 herein was arraigned as a party Respondent therein. It is submitted that the contentions raised in the aforementioned Writ Petitions were identical to those raised in the present suit proceedings. It is submitted that all the contentions were rejected by this Hon'ble High Court while passing a detailed Order dated 29.03.2012.
32. It is submitted that the said constituents of the Respondent No. 1 assailed the Order dated 29.03.2012 passed by this Hon'ble High Court before the Hon'ble Supreme Court of India vide Special Leave Application No. 19595-19598/2012.
33. It is submitted that the Hon'ble Supreme Court of India vide Order dated 24.08.2012 rejected the contentions of the constituents of the Respondent No. 1. Even at this stage, The Respondent No. 1 herein was arraigned as a party Respondent therein.
34. It is submitted that the Forms I & XIV of Record of Rights in respect of Survey Nos. 93/2, 93/2 and 93/4 record the name of the Applicants as the occupant in possession.
35. It is submitted that the Applicants has been granted conversion sanads, vide Conversion Sanads bearing Nos. RB/CNV/TIS/133/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/2, Conversion Sanad No. RB/CNV/TIS/135/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/3, and Conversion Sanad No. RB/CNV/TIS/03/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/4.
36. It is further submitted that Technical Clearance Orders have been issued by the Town & Country Planning Department Panaji Reference No. TIS/6124/BAM/TCP/12/384 Dated 03.04.2012 in respect of property bearing survey No. 93/2 of Village Bambolim, Taluka Tiswadi, Goa; Reference No. TIS/7554/BAM/TCP/13/377 Dated 27.02.2013 in respect of

J. A. S.

property bearing survey No. 93/3 of Village Bambolim, Taluka Tiswadi, Goa; and Reference No. TIS/6087/BAM/TCP/12/1045 Dated 27.08.2012 in respect of property bearing survey no.93/4 of Village Bambolim , Taluka Tiswadi , Goa in favour of the Applicants.

37. It is submitted that NOCs from Health Department Ref No. UHC/DHS/NOC/12-13/326 dated 27.04.2012 in respect of property surveyed under Survey No. 93/2; Ref No. UHCP/DHS/NOC/12-13/3557 dated 13.3.2013 in respect of property surveyed under Survey No. 93/3; and Ref No. UHCP/DHS/NOC/12-13/1995 Dated 21.09.2012 in respect of property surveyed under Survey No. 93/4, have been duly obtained by the Applicants.
38. It is further submitted that Environmental Sanction has been accorded vide order bearing Ref No. 3-181-2010/STE-DIR/105 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/2, and similarly vide order bearing Ref No: 3-181-2010/STE-DIR/104 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/4 at the behest of the Applicants.
39. It is submitted that the Applicants has obtained Construction License Ref No. VP/CBT/2013-14/CONST/186 Dated 02.05.2013 in respect of property bearing survey no.93/2 of Village Bambolim, Taluka Tiswadi , Goa; vide Ref No.VP/CBT/2013-14/CONST/88 dated 16.04.2013 in respect of property surveyed under Survey No. 93/3 of Village Bambolim, Taluka Tiswadi , Goa, and vide Ref No.VP/CBT/2012-13/CONST/2041 Dated 30.03.2013 in respect of property surveyed under Survey No. 93/4 of Village Bambolim, Taluka Tiswadi , Goa, by the Village Panchayat of Curca, Bambolim and Talaulim thus entitling the Applicants to undertake construction activity in the said properties.
40. It is submitted that the sole intent of the Respondent No. 1 has been to mete out continuous harassment to the Applicants in order to coerce the Applicants into yielding to the demands of the Respondent No. 1. It is submitted that the entire gambit of the Respondent No. 1 is to extort money out of the Applicants by leveling false and baseless claims in respect of the said properties.
41. In view of the aforestated facts & circumstances these Applicants preferred an Application under Order VII Rule 11(d) seeking rejection of the Plaint being hopelessly barred by the law of limitation. That vide Order dated 30.07.2016 the Ld. Civil Judge Senior Division dismissed the Application.
42. The Applicants under these circumstances prefers this Application on the following amongst other grounds which are urged in the alternate and without prejudice to one another:-

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GROUNDS

[A] That the Order dated 30.07.2016 passed by the Ld. Trial Court is illegal and cannot be sustained in law.

[B] The Ld. Trial Court failed to consider that this Hon'ble High Court vide common Order dated 29.03.2012 passed in Writ Petitions Nos. 506 of 2009, 557 of 2009, 577 of 2009 and 657 of 2011 had not given any liberty to the Respondent No. 1 herein to file any kind of suit proceedings. The Ld. Trial Court appears to have laboured under a wrongful presumption that this Hon'ble High Court had granted liberty to the Comunidade of Bambolim, the Respondent No. 1 herein to institute suit proceedings against the Applicants. It is therefore submitted that the Ld. Trial Court as such failed to exercise jurisdiction vested in it and to that extent has fallen into grave error.

*liberty
never
to
Comunidade*

*11(d) - 58/65
- limitation
- res judicata*

[C] The Ld. Trial Court failed to consider/ record the submission that the besides the bar of limitation in terms of Art. 58 & 65 of the Limitation Act, the Respondent No. 1 was precluded from instituting the instant suit proceedings under Section 12 of the Civil Procedure Code.

[D] The Ld. Trial Court failed to take into consideration that the Respondent No. 1 Comunidade having previously entered into the Consent Terms dated 19.11.1998 and Compromise Decree dated 21.11.1998, and the same having attained finality, could not be re-agitated by way of the instant suit proceedings.

[E] The Ld. Trial Court failed to consider that on a conjoint reading of Paragraphs 20, 21, 25, 29, 30, 31, 32, 34, 42, 43, 44, 46, and 47 of the Complaint, the only conclusion that could have been arrived at was that the Plaintiffs were well aware of the possession and ownership of the predecessor-in-title of the Applicants.

[F] The Ld. Trial Court failed to consider that in terms of the Application under Order XXIII Rule 3 viz., Civil Miscellaneous Application No. 6/2010 preferred by Respondent No. 1 seeking recall of the Compromise Decree dated 21.11.1998, at Paragraph 31 of the said Application the Respondent No. 1 clearly admitted that they became aware of the said Compromise Decree on 02.01.2009 (which otherwise forms the foundation of the Respondent No. 1's plea of fraud). It was therefore abundantly clear that the suit proceedings were barred by the law of limitation.

*para 46
page 14
complaint*

[G] That vide its Order dated 18.08.2016 the Civil Judge Senior Division at Panaji, Goa rejected the Application under Order XXIII Rule 3 viz., Civil Miscellaneous Application No. 6/2010 preferred by Respondent No. 1 seeking recall of the Compromise Decree dated 21.11.1998 whilst rejecting the allegation of fraud levelled by the Respondent No. 1.

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- [H] The Ld. Trial Court erred in placing reliance on the judgment of this Hon'ble Court passed in the case of *Pedro do Rosario Fernandes v. Wilfredo Xavier Jose Monteiro* reported in 2015 (2) G. L. R. 619, in as much as the subject-matter & facts presented in the said case were pertaining to a claim of adverse possession and the corresponding provisions thereto under Articles 65 & 66 of the Limitation Act. The Ld. Trial Court appears to have proceeded on the erroneous premise in presuming that the claim of the Defendants (Applicants herein) was that of adverse possession.
- [I] The Ld. Trial Court erred in placing reliance on the judgment of this Hon'ble Court passed in the case of *Daya Singh and Ors.*, reported in (2010) 2 SCC 194, in as much as the facts in the said pertained to a defence of limitation solely based revenue records, whereas in the instant case the Plaintiff itself referred to land acquisition proceedings; survey records, Special Civil Suit No. 222/1994; Consent Terms dated 19.11.1998; Compromise Decree dated 21.11.1998; Three (3) Deeds of Sale dated 25.04.2006; Mutation of the Applicant No. 1's name in the survey records in 2007; so also clear admission that the Respondent No. 1 became aware of the said Compromise Decree dt 21.11.1998 on 02.01.2009. It is therefore submitted that the impugned Order suffers from material irregularity.
- (emphasis supplied)
- [J] The Ld. Trial Court erred in placing reliance on the judgment of this Hon'ble Court passed in the case of *Sazyad Mainuddin & Anr. V. Sayed Quadri*, reported in AIR 1971 SC 2184, in as much as no ingredients of fraud have been spelt out anywhere in the Plaintiff. In any event of the matter, even assuming without in any manner admitting, that there was indeed some kind of fraud played by the predecessor in title of the Applicants. However, in view of the clear admission of the Respondent No. 1 that that the Respondent No. 1 became aware of the said Compromise Decree dt 21.11.1998 on 02.01.2009 the present suit proceedings would clearly be barred by the law of limitation.
- [K] That in view of the confirmation of the Consent Decree arrived in Civil Suit No. 222/1994 the present suit proceedings are barred by the law of *res judicata*.
- [L] It is submitted that premise on which the Order dated 30.07.2016 is based renders the tenets of Order VII Rule 11 r/w Section 12 of the CPC nugatory. The Applicants who are senior citizens have been relegated to suffer a protracted and lengthy trial ridden with mounting costs. It is therefore submitted that the Ld. Trial Court as such illegally exercised jurisdiction vested in it and to that extent has fallen into grave error.

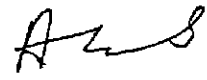
J Ans

[M] Such other and further grounds that may be urged at the time of hearing.

43. The Applicants are entitled to an Order calling of records and proceedings viz., No. Special Civil Suit No. 52 of 2013/A and upon perusing the same for ascertaining its legality and validity to set aside the said Order dated 30.07.2016 and reject the Suit Plaint.
44. The Applicants have not filed any other Application either in this Hon'ble Court or in the Supreme Court of India, regarding the subject matter of this Application.
45. The Applicants have no other alternate or efficacious remedy available, and the reliefs prayed for in this Application if granted, will be complete in themselves.
46. The cause of action has arisen within the jurisdiction of this Hon'ble Court. Therefore, this Hon'ble Court has jurisdiction to hear and decide this Application.
47. The Applicants have paid the prescribed Court Fees herewith.
48. The Applicants therefore pray as under:-

P R A Y E R S

- (A) That this Hon'ble Court also be pleased to call for the records and proceedings viz., Special Civil Suit No. 52/2013/A pending before the Civil Judge Senior Division 'A' Court at Panaji, Goa and upon perusing the same for ascertaining its legality and validity, set aside the Order dated 30.07.2016 and to allow the Application under Order VII Rule 11 (d) rejecting the suit plaint;
- (B) That this Hon'ble Court also be pleased to stay the proceedings before the Civil Judge Senior Division at Panaji in Special Civil Suit No. 52/2013/A;
- (C) For *ad-interim ex parte* reliefs in terms of prayer clauses 'B';
- (D) For such other and further relief that this Hon'ble Court deems fit and proper;
- (E) For costs.

 
(APPLICANT NO. 1) (APPLICANT NO. 2)

Place :- Panaji, Goa.
Date :- 06.10.2016

VERIFICATION

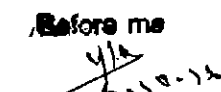
I, Pascoal Irineu Trindade, son of Augustine Trindade, 75 years of age, Indian national, resident of Palbrika Mansion, Dona Paula, Panaji, Goa, the Applicant No. 1 herein solemnly declare that whatever is stated in foregoing paragraphs 1 to 47 is true to my own knowledge and belief and that paragraph 48 is the prayer clause.

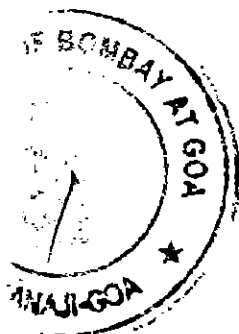
Solemnly affirmed this 6th day of October, 2016 at Panaji, Goa.


(Deponent)

Identified by me:


RAJNAQ RAO, ADVOCATE

Before me

6.10.16
Section Officer
Judicial Branch



IN THE HIGH COURT OF BOMBAY AT GOA
AT PANAJI - GOA

CIVIL REVISION APPLICATION NO. OF 2016

IN THE MATTER OF:

PASCOAL TRINDADE & ANR.

... Applicants

Versus

COMUNIDADE OF BAMBOLIM & ORS.

... Respondents

AFFIDAVIT

I, Pascoal Irineu Trindade, son of Augustine Trindade, 70 years of age, Indian national, resident of Palbrika Mansion, Dona Paula, Panaji, Goa, the Applicants herein do hereby on solemn oath and affirmation state as under:-

1. That I have read the contents of the instant Application and the same are as per my say.
2. That the contents of the foregoing paragraphs 1 to 47 are true to my knowledge and also based on legal advice which I believe to be true.
3. That paragraph 48 is the prayer clause.
4. That the contents of foregoing paragraphs 1 to 3 are true and correct.

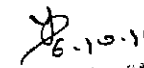
Solemnly affirmed at Panaji, Goa, on this 6th day of October, 2016.


(Deponent)

Identified by me:


RAUNAQ RAO, ADVOCATE

Solemnly affirmed before me by Pascoal Irineu Trindade who is
identified to Raunaq RAO Adv. Mr. personally
know. Dated this 6th day
October 2016


6.10.16
Section Officer
High Court of Bombay at Goa
Panaji-Goa

